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THE BIG STORY
BLASPHEMY LAWS

A LAW FOR FRAGILE FEELING

SECTION 295A OF THE IPC IS THE CLOSEST THING INDIA HAS TO AN ANTI-BLASPHEMY LAW. ALONG WITH OTHER PROVISIONS, IT IS BEING USED TO BROWBEAT DISSENT, CURTAIL FREEDOM OF SPEECH

By Kaushik Deka

The preamble of the Constitution declares India to be a sovereign, socialist, secular and democratic republic. One of the guiding principles of our democracy is the Fundamental Rights of citizens, including Freedom of Speech, that is enshrined in the Constitution. However, in recent years, this primary tenet of liberty and justice in our democratic structure has come under severe stress as India has been increasingly converting itself into a republic of fragile sentiments. And the excuse of hurt sentiments has been given an unchallenged legal sanction by a penal provision drafted by British colonial rulers—Section 295(A) of the Indian Penal Code (IPC), 1860.

The rampant use of this provision—often called the Indian version of blasphemy law—has made critics question the legitimacy of such a law in a liberal democracy. What is worse is the competitive spirit of political opponents to cry blasphemy, and interpreting the law to suit their narratives. Its use, or rather misuse, was taken to a ludicrous height in early July when a food stall owner in Uttar Pradesh was arrested for wrapping meat in a newspaper on which pictures of Hindu deities were printed.

According to Section 295A, if a person maliciously by words spoken or written or signs or by visible representation insults or attempts to insult religious sentiments of any class of citizens then he or she may be punished with imprisonment for three years or fined, or both. Though India officially doesn't have a law against blasphemy, this section is the closest to the scope of such a law. Blasphemy is usually defined as "the action or offence of speaking sacrilegiously about God or sacred things" or "speaking evil of the divine things".

While it can be debated if wrapping meat in a newspaper with the image of a deity is a deliberate insult against the divine, the fact that it has been classified as a cognisable offence allows the police to arrest the accused without a judicially sanctioned warrant, at the instance of an FIR or the complaint being deemed by the police as 'reasonable'. This leaves a scope for the abuse of law. Coupled with judicial delay, political parties use the process of